

## Confidentiality Agreement

Everise Concepts PLT (hereinafter referred to as the party "A") and RISE HOLDINGS LTD and/or INSTINCT BROTHERS Co., Ltd. (hereinafter referred to as the party "B") and in the event that the party A and the party B disclose information to each other(hereinafter, the party who discloses information based on this agreement is called the "discloser" and the party who receives the information is called "the information recipient" of ") to prevent the leakage of confidential information. Therefore, the both parties shall enter into a confidentiality agreement as follows.

(Definitions)

### Article 1

The "information" as used herein shall mean all information disclosed by the discloser, whether in writing, orally, or by any other means. However, this shall not apply to information that fall under any of the following paragraphs.

(1) Information that was already in the possession of the information recipient prior to the execution of this Agreement

(2) Information that became publicly known through no fault of the information recipient before or after the conclusion of this Agreement

(3) obtained by the Information Recipient from a third party with legitimate authority without obligation to maintain confidentiality

(4) information that the information provider acknowledges that confidentiality is not particularly necessary.

2. Third parties referred to in this Agreement shall not include directors, auditors, officers, and employees of the party A and the party B, or the experts (Article 2, Paragraph 2) appointed by the party A or the party B respectively for this case.

(Confidentiality)

### Article 2

1. The party A and the party B shall maintain the confidentiality of information stipulated in Paragraph 1 of the preceding Article strictly confidential, and shall not divulge or disclose such information to any third party without the prior written consent of the other party.

2. For the purpose of evaluation and examination of this case, the party A and the party B may disclose the information stipulated in Paragraph 1 of the preceding Article to a certified public accountant, lawyer, or other expert. However, the other party shall be notified to that effect in advance.

(Prohibition of diversion)

(Article 3.)

The information recipient shall not use the Information disclosed or provided by the discloser for any purpose other than those agreed upon by both parties without the prior written consent of the discloser.

(Return of information)

#### Article 4

When this Agreement is terminated for any reason, the party A and the party B shall promptly return to the other party the information disclosed by the other party, such as paper or electronic documents, other information media, and copies thereof, or must be discarded.

(Date of expiry)

(Article 5.)

The term of validity of this Agreement shall be one year from the date of conclusion of the Agreement. Extension of this Agreement shall be decided by mutual consultation between the both parties.

2. Notwithstanding the provisions of the preceding paragraph, Article 2 (Confidentiality) and Article 6 (Compensation for Damages) shall continue for 3 years after the date of termination of this Agreement.

(Claim damages)

#### Article 6

In the event that the party A or the party B violates the confidentiality obligations stipulated in this Agreement and leaks confidential information, the discloser can demand the information provider to stop the violation and restore the original state, and can claim damages.

(Matters not stipulated)

#### Article 7

In the event of any matter not stipulated in this Agreement, or in the event that any question arises concerning the matters described herein, the party A and the party B will decide after consultation in good faith.

(Jurisdiction)

Article 8

The Singapore Court shall be the court of exclusive jurisdiction of the first instance

in the event of any dispute arising between the parties with respect to this Agreement, which shall be resolved by a court of law.

In witness whereof the parties hereto have executed this agreement, two (2) copies of this document have been prepared and each party hereto shall retain one (1) copy, each bearing the name and seal of the other party.

Year   Month   Date

The party A

Everise Concepts PLT

31-13-29 The CEO, Lebu Nipah 7

11900 Bayan Lepas, Penang

Malaysia

Mr. Lim Say Leong, Executive Director

07/02/2023



The party B

RISE HOLDINGS LTD / INSTINCT BROTHERS CO LTD

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Gotanda Shinagawa-ku Tokyo, 1410031

Japan

Mr Tomoki Nagano, Chairman and CEO